

3. It must pray the specific relief to which the plaintiff supposes himself to be entitled.

4. Besides the prayer for process the prayer for general relief may be added.

The bill needs not be signed by Counsel, nor shall it contain any interrogatories, and all merely formal parts shall be omitted except only the address and conclusion.

The form is as follows :—

IN CHANCERY.

*To the Honorable William Hume Blake, Chancellor
of Upper Canada :*

The Bill of Complaint of A. B., of &c. (here follow the names and additions of all the parties complainant)

Showeth, that (state the complainant's case as succinctly as can be done consistently with due certainty, and in any language suitable for the purpose)

To the end, therefore, that (state the relief sought) your complainant prays that (if an injunction or other special writ be required, introduce an appropriate prayer) a subpoena may issue under the seal of this Honorable Court, directed to the said C. D. (name all the parties defendant), calling upon him to appear to this bill and observe what this Honorable Court shall direct in that behalf.

And your complainant shall ever pray, &c.

There is no English Order similar to this, the change having been there from the old Bill with Interrogatories and formal parts to the Short Claims under Lord Cottenham's Orders of 1850.

The other modes of proceeding in Chancery are those prescribed by the Orders of 1851, which are given at the conclusion. This was found more convenient than embracing the Orders in this part of the book. The proceedings here stated apply to all such cases as are not excepted by the more recent Orders, the object of which has been, to simplify the proceedings in all cases which involve no points on which evidence is required to be entered upon prior to the decree. The practitioner then will find it necessary to ascertain whether each case comes under the provisions of the now stated Orders, or those of 1851.

Other modes of
commencing a
suit.